

IRENEO O. CRODUA JR.
BADAS, CITY OF MATI

September 26, 2025

Kate's Original Gadgets Mati
City of Mati, Davao Oriental

Subject: Formal Demand for Compensation Due to Misrepresentation, Emotional Distress, and Delay in Action

Dear Kate's Original Gadgets Mati,

I am writing to formally demand compensation arising from your company's misrepresentation and failure to act promptly on my legitimate concerns regarding the unit I purchased from your store.

On **September 9, 2025**, I bought a iPhone 14 Pro Max (A2651) unit from your branch. At the time of sale, your sales staff did not disclose that the product was secondhand/reconditioned, and I was required to sign a one-sided agreement with restrictive clauses such as **"no refund," "all sales are final,"** and penalties for sticker removal. These terms are contrary to the **Consumer Act of the Philippines (RA 7394)** and cannot override my rights as a consumer.

I immediately raised my concern and sought a refund/replacement. However, instead of promptly addressing my demand, your office ignored my request, forcing me to endure **unnecessary emotional stress, inconvenience, and wasted time**. If you had acted swiftly and responsibly, the matter could have been resolved without escalation.

Take note that you now acknowledge that you did not mention that the unit sold was not brand new, which is a form of **deceptive sales practice** under RA 7394.

Accordingly, I demand the following within **five (5) days** from receipt of this letter:

1. **Full refund** of the purchase price of the unit;
2. **Compensation for damages** suffered, including moral damages for emotional distress and the undue delay in resolving my rightful claim;
3. A **written apology** for the inconvenience caused.

Failure to comply will compel me to **continue my complaint before the Department of Trade and Industry (DTI)** and, if necessary, initiate civil and/or criminal actions under RA 7394 and the Civil Code of the Philippines to enforce my rights and recover damages.

This letter serves as your **final opportunity** to amicably resolve the issue.

Respectfully,


Ireneo O. Crodia Jr.